# THE ORISSA (ALTERATION OF NAME) ACT, 2011

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SECTIONS


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IndiaCode

# THE ORISSA (ALTERATION OF NAME) ACT, 2011

## ACT NO. 15 OF 2011

[*23rd September,* 2011.]

An Act to alter the name of the State of Orissa.

BE it enacted by Parliament in the Sixty-second Year of the Republic of India as follows:—

**1. Short title and commencement**.—(*1*) This Act may be called the Orissa (Alteration of Name) Act, 2011.

(*2*) It shall come into force on such date[1] as the Central Government may, by notification in the Official Gazette, appoint.

**2. Definitions**.—In this Act, unless the context otherwise requires,—

(*a*) "appointed day" means the date appointed under sub-section (*2*) of section 1 for the coming into force of this Act;

(*b*) "appropriate Government" means, as respects a law relating to a matter enumerated in List I in the Seventh Schedule to the Constitution, the Central Government, and as respects any other law, the State Government;

(*c*) "law" includes any enactment, Ordinance, regulation, order, bye-law, rule, scheme, notification or other instrument having the force of law in the whole or any part of the State of Orissa.

**3. Alteration of name of State of Orissa**.—As from the appointed day, the State of Orissa shall be known as the State of Odisha.

**4. Amendment of article 164**.—In article 164 of the Constitution, in clause (1), in the proviso, for the word "Orissa", the word "Odisha" shall be substituted.

**5. Amendment of article 273**.—In article 273, in clause (1), for the word "Orissa", the word "Odisha" shall be substituted.

**6. Amendment of First Schedule to the Constitution**.— In the First Schedule to the Constitution, under the heading "I. THE STATES", in entry 10, under the column "Name", for the word "Orissa", the word "Odisha" shall be substituted.

**7. Amendment of Fourth Schedule to the Constitution**.— In the Fourth Schedule to the Constitution, under the heading "TABLE", in entry 14, in the second column, for the word "Orissa", the word "Odisha" shall be substituted.

**8. Power to adapt laws**.—(*1*) For the purpose of giving effect to the alteration of the name of the State of Orissa by section 3, the appropriate Government may, before the expiration of one year from the appointed day, by order, make such adaptations and modifications of any law made before the appointed day, whether by way of repeal or amendment, as may be necessary or expedient, and thereupon every such law shall have effect subject to the adaptations and modifications so made.

(*2*) Nothing in sub-section (*1*) shall be deemed to prevent a competent Legislature or other competent authority from repealing or amending any law adapted or modified by the appropriate Government under the said sub-section.

**9. Power to construe laws**.—Notwithstanding that no provision or insufficient provision has been made under section 8 for the adaptation of a law made before the appointed day, any court, tribunal or authority, required or empowered to enforce such law, may construe the law in such manner, without affecting the substance, as may be necessary or proper in regard to the matter before the court, tribunal or authority.

**10. Legal proceedings**.—Where immediately before the appointed day any legal proceedings are pending to which the State of Orissa is a party, the State of Odisha shall be deemed to have been substituted for the State of Orissa in those proceedings.

1. 1st November, 2011, *vide* notification No. G.S.R. 791(E), dated 1st November, 2011, *see* Gazette of India, Extraordinary, Part II, sec. 3 (*i*).